

VCU316413 Alba Bustamante, Estefani Carolina vs. Kaweah Delta Health Care, Inc

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-20

Motion: Plaintiff's Motion for Summary Adjudication

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Re: Alba Bustamante, Estefani Carolina vs. Kaweah Delta Health Care, Inc

Case No.: VCU316413

Date: August 20, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiff's Motion for Summary Adjudication

Tentative Ruling: To deny the motion

Facts and Analysis

On December 26, 2024, Plaintiffs filed their Complaint in Tulare Superior Court alleging (1) Medical Malpractice - Professional Negligence; (2) Medical Battery; (3) Negligent Infliction of Emotional Distress; (4) Survival Action; (5) Failure to Provide Medical Translation; (6) Vicarious Liability; (7) Negligent Hiring Supervision Retention; (8) Violation of Patient's Bill of Rights; and (9) Wrongful Death.

On March 6, 2025, this Court sustained Defendant's Demurrer as to Plaintiffs Negligent Infliction of Emotional Distress, Failure to Provide Medical Translation, and Violation of Patient's Bill of Rights causes of action.

On April 16, 2026, the Court denied Kaweah's motion for summary adjudication as to the vicarious liability theory of ostensible agency.

On June 5, 2026, Plaintiffs filed this summary adjudication motion "...of the first element of their cause of action for medical battery, asking the Court to determine that on September 6, 2024, Kaweah Delta Health Care District Inc.'s employees induced Estefani Carolina Alba Bustamante without her consent."

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); emphasis added.)

Here, summary adjudication of a single element of a cause of action is not available to Plaintiff. Establishing the first element of the cause of action would not “completely dispose of” the cause of action. No affirmative defense would be established. The Court does not consider the first element regarding consent to be “a claim for damages, or an issue of duty.”

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.